IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-III

ITEM No. 319
CA-332/2022
In
CAA-84/ND/2020

IN THE MATTER OF:

G.G. Errectors And Constructors Pvt. Ltd. .... Petitioner/Applicant
Vs.
G.G. Promoters and Developers Pvt. Ltd. .... Respondent

Order under Section 230-232 of the Companies Act.

Order delivered on 24.07.2023

CORAM:
SHRI BACHU VENKAT BALARAM DAS
HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Adv. Sougat Sinha
For the OL : Adv. Hemlata Rawat

ORDER

CA-332/2022

This is an application seeking recall of an order dated 02.06.2022 passed by a Bench comprising of "Shri Bachu Vekant Balram Das (Member Judicial)" And "Shri Virendra Kumar Gupta (Member Technical)" wherein inadvertently, while passing the final orders in Second Motion Application, directions for issue of notices to Statutory Authorities as well as the paper publication was given. It is submitted by the Learned Counsel appearing for the Petitioner that the notices were served and the paper publication has already been done consequent to the order passed by this Tribunal on 18.12.2020.

In view of the submission made, we are satisfied that there is an inadvertent error in the order passed by this Tribunal on

02.06.2022. We, therefore, set aside the order dated 02.06.2022 and direct the matter to be listed for de-novo hearing.

In view of the facts and circumstances of the case as stated above, we feel it necessary to issue fresh notice to the Respondents/Statutory Authorites authorities i.e. the Regional Director (Northern Region), the Official Liquidator, New Delhi, the Registrar of Companies, NCT of Delhi & Haryana and the Income Tax Department.

The Petitioner is directed to serve notice by all modes and file proof of service alongwith an affidavit within two weeks.

List the matter **on 04.09.2023.**

-Sd-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-Sd-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

ANAND DUBEY